Performance Work Statement

For

Fire Department Trainer Maintenance

5th Civil Engineer Squadron

Date: 09 November 2026

1 OVERVIEW AND OBJECTIVE:

1.1 Overview:

1.1.1 This requirement is for nonpersonal services for the 5th Civil Engineer Squadron (CES), 5th Bomb Wing, Minot Air Force Base (AFB), including surrounding United States Air Force locations within North-Central North Dakota as listed in this performance work statement.

1.1.2 Minot Air Force Base (AFB) is home to two major Air Force units: the 5th Bomb Wing and the 91st Missile Wing. Located approximately 13 miles north of Minot, North Dakota, and 120 miles north of the state capital, Bismarck, Minot AFB experiences a continental climate with warm summers and cold winters, as well as occasional extreme winds. The base operates in the Central Time Zone. For more information, visit the following websites: https://www.minot.af.mil/, https://minotnd.gov/, and https://visitminot.org/.

1.1.3 5 CES needs a Contractor to provide fire systems trainer maintenance, allowing the Minot AFB Fire Department to train personnel on simulated fires and emergencies in a safe and realistic manner.

1.2 Notes and Definitions:

1.2.1 While the term “Government” applies to the Government as a whole, only the CO’s, Fire Department (FD) POC, Contract Administrator (CA), and Contracting Officer (CO) may supply any guidance to the Contractor. The FD POC and CA help the CO in the administration of the contract and may provide technical and administrative guidance. Only a warranted CO may bind the Government to any changes in the terms or conditions to the contract.

1.2.2 The terms “Minot AFB”, “installation”, and “base” refer to all property and land controlled by the 5th Bomb Wing and the 91st Missile Wing.

1.2.3 **Personnel interactions:**

1.2.3.1 If a government employee, such as a police or security officer, safety representative, or Facility Manager, asks the Contractor to temporarily stop working, the Contractor must comply. This includes stopping work during an emergency or when instructed to do so by emergency

personnel. The Contractor must then notify the CO, CA, and COR within 24 hours about the interruption and provide an estimate of the delay's impact.

1.2.3.2 If someone from the base, including customers or other personnel, asks the Contractor to stop or change the work, the Contractor must NOT make any changes without the CO's approval. If the Contractor is asked to stop or change the work, they must notify the CO, CA, and COR immediately. The Contractor should direct any questions from base personnel to the CO to ensure that all concerns are addressed properly.

1.2.4 Web links provided within this performance work statement are for informational purposes and should not be considered contractual guidance.

1.3 **Objective:**

1.3.1 The Contractor is responsible for providing all personnel, equipment, tools, materials, transportation, and supervision], to support this service, unless otherwise specified in this performance work statement. The Government will only supply those items named in the "Government Provided Facilities, Equipment, and Materials" section.

1.4 **Description of Service:**

1.4.1 5 CES needs Contractor provided fire systems trainer maintenance, allowing the Minot AFB Fire Department to train personnel on simulated fires and emergencies in a safe and realistic manner.

1.4.2 Historically the 5 CES has received these services through Service Contracts.

1.5 **Codes and Standards:**

1.5.1 Contractor work must follow the standards in this requirement and all proper local, state, and federal or national codes. All work must conform to local installation facility standards when shown. All products and equipment must be UL Solutions standards or equal. All codes and standards must be the latest edition of applicable local, state, and federal or national codes at the time of award.

1.6 **Mobilization and Demobilization:**

1.6.1 **Mobilization / Phase-In Period:**

1.6.2 The Government will provide a phase-in period of up to thirty (30) calendar days commencing on the effective date of contract award. During this period, the Contractor shall accomplish all initial administrative and onboarding tasks, including:

- Obtaining installation passes and Real ID-compliant base access credentials.
- Submitting the initial Contractor Quality Control Plan (QCP) and Safety Data Sheets (SDS).

- Designating primary and alternate Contract Managers.
- Conducting an initial joint inventory and facility walkthrough with the Fire Department POC and Contracting Officer.

1.6.3 **Full Operational Performance:** The Contractor shall achieve full operational readiness and assume full responsibility for all maintenance, emergency repair response times, and reporting requirements in Section 2 no later than day thirty-one (31) post-award. All work performed during or after the phase-in period shall comply fully with applicable technical orders, NFPA standards, and safety directives.

1.6.4 **Demobilization / Phase-Out and Transition:** In the event the requirement transitions to a successor contractor or reverts to in-house Government operation, the incumbent Contractor shall cooperate fully to affect an orderly and professional transition. In accordance with FAR 52.237-3 (Continuity of Services), the Contractor shall ensure that normal trainer operations and scheduled maintenance are not interrupted during the transition period.

1.6.5 **Return of Government Property:** Within ten (10) calendar days of contract expiration or notification of non-selection for follow-on award, the Contractor shall return all government-furnished property, tools, access badges, and materials to the Government in the condition received, normal wear and tear excepted.

1.7 Place of Performance:

1.7.1 The primary place of performance is on Minot Air Force Base; Fire Department Training Area located at Bldg. 2226 Bomber Blvd. The address for the central office of the 5 CES is Building 445 Peacekeeper Place.

2 SCOPE:

2.1 Contractor responsibilities:

2.1.1 The Contractor shall provide all personnel, supervision, equipment, tools, test instruments OEM replacement parts, materials, and non-personal services necessary to perform semi-annual inspections, operational testing, preventative maintenance, winterization/de-winterization, and repairs on the Fire Department (FD) Helicopter Trainer (O-100), Structural Trainer (T-500), and Aircraft/Hose Line Trainer (O-100) (collectively referred to as the Automated Fire Training Facility (AFTF) or "Live-Fire Trainers"). The goal is to ensure the facilities remain fully operational and serviceable. The Contractor must perform all work according to the manufacturer’s recommendations, relevant technical orders (TOs), all applicable local, state, and federal guidelines, and National Fire Protection Association (NFPA) standards.

2.1.2 **CONTRACTOR PERSONNEL QUALIFICATIONS & LICENSING:**

2.1.3 **Manufacturer Authorization (TO 35E1-2-13-1 Mandate):** In strict accordance with TO 35E1-2-13-1, contract maintainers must provide written documentation directly from the Original Equipment Manufacturer (OEM) KFT Fire Trainer, LLC (formerly Kidde Fire Trainers, Inc.) - verifying that they are currently certified and explicitly authorized to service the manufacturer's products.

2.1.4 **OEM Maintenance Certification Levels (O&M Manual Section 4.1.1):** The Contractor shall adhere to the four OEM-defined maintenance personnel levels:

a. **Level 1 (Basic Maintenance):** May perform basic tasks only under the direct, on-site supervision of a certified Level 2 or Level 3 Maintainer. Must possess documented knowledge of system functionality and operational hazards.

b. **Level 2 (Intermediate Maintenance):** May perform intermediate tasks and basic troubleshooting only under the direct, on-site supervision of a certified Level 3 Maintainer.

c. **Level 3 (Advanced Maintenance & Unsupervised Work):** All technicians performing unsupervised troubleshooting, advanced maintenance, or repairs must be formally trained and certified by a KFT Fire Trainer, Inc. Service Specialist as a Level 3 Maintainer and comply with the Authority Having Jurisdiction (AHJ).

d. **Level 4 (OEM Service Specialist):** The Contractor shall provide a certified KFT Fire Trainer Service Specialist (Level 4) to inspect, calibrate, adjust, and verify that the safety system, gas detection sensors, and safety valves are in complete, reliable working operation.

2.1.5 **State Gas & Trade Licensing:** Technicians servicing liquid petroleum gas (LPG) piping, vaporizers, regulators, or solenoid valves shall hold valid state/local LPG/Gas Fitter licenses as required by the Authority Having Jurisdiction (AHJ).

2.1.6 **Pre-Work Submittal:** The Contractor shall submit all OEM authorization letters, technician training certificates, trade licenses, and resumes to the Contracting Officer (CO) and Fire Department Point of Contract within ten (10) calendars days of contract award and prior to commencing any on-site work.

2.1.7 **SCHEDULED INSPECTIONS & TECHNICAL ORDER COMPLIANCE:**

2.1.8 **Semi-Annual Inspection Schedule:** The Contractor shall maintain the Live-Fire Trainers by scheduling and conducting two (2) semi-annual inspections per year (not to exceed 240 calendar days between inspections), performed in conjunction with seasonal winterization and de-winterization activities where applicable.

2.1.9 **Mandatory Checklists**: The Contractor shall perform all inspections, operational

testing, and maintenance in strict accordance with:

a. TO 35E1-2-13-1 (dated 9 June 2013), specifically Table 1 (Semi-Annual System Safety Inspection and Operational Checks) and Table 3 (Maintenance Inspection and Test Schedule, Pages 5 through 12), utilizing Attachments 2 and 3.

b. OEM Operation & Maintenance (O&M) Manuals for the Structural Fire Trainer T-500 and Helicopter/Aircraft Fire Trainer O-100 systems.

2.1.10 **ANNUAL MANUFACTURER SAFETY MODIFICATION VERIFICATION:**

2.1.11 **Annual OEM Inquiry**: In accordance with TO 35E1-2-13-1, the Contractor shall obtain written documentation from the OEM annually detailing any required or recommended safety modifications, service bulletins, or system upgrades applicable to the specific serial-numbered units on station.

2.1.12 **18-Month Mandatory Shutdown Rule:** Documentation must be obtained and submitted to the Fire Department POC annually and the Contracting Officer Per TO 35E1-2-13-1, any unit without valid manufacturer safety modification documentation within the past eighteen (18) months shall be immediately shut down and locked out until such documentation is received.

2.1.13 **NFPA, ENVIRONMENTAL, AND REGULATORY COMPLIANCE:**

2.1.14 **Code Compliance:** All maintenance, testing, and repair work shall comply with OSHA 29 CFR 1910 (including Lockout/Tagout procedures) and the latest editions of:

a. NFPA 1402 (Standard on Facilities for Fire Training and Associated Props), Chapters 8 and 9 (Sections 8.9 and 9.9), governing interior and exterior gas-fueled training systems, burn room thermal linings, mechanical exhaust ventilation interlocks, and emergency shut-off controls.

b. NFPA 1403 (Standard on Live Fire Training Evolutions), Chapters 5 and 7, governing pre-burn operational safety checks, pilot ignition verification, and fail-safe interlock operation.

c. NFPA 54 (National Fuel Gas Code), Chapters 4 and 8, governing fuel gas piping inspections, pressure/leak testing, inert gas purging, and manual quarter-turn emergency shut-off valves.

d. NFPA 1404 and NFPA 1500 occupational safety and training standards.

2.1.15 **Safety Interlock Sign-Off:** Prior to returning any trainer to active Government service following maintenance or repair, the Contractor shall physically test and provide a signed certification verifying that all emergency stop (E-Stop) circuits, gas detection purge loops, high-temperature cutouts, and flame-failure interlocks function in strict compliance with NFPA 1402 and OEM specifications.

2.1.16 **Environmental & Hazmat Compliance:** The Contractor shall use only OEM-approved consumables (e.g., Kidde Type II Smoke Fluid) and submit Safety Data Sheets (SDS) and a Site Safety and Health Plan (SSHP) to the COR prior to commencing work.

2.1.17 **REPORTING, DISCREPANCIES, AND RECORD RETENTION:**

2.1.17.1 **Record Retention:** The Maintenance Inspection and Test Schedule (TO 35E1-2-13-1, Pages 5 through 12) shall be fully documented, signed, and filed by the Contractor. All maintenance records shall be maintained for a minimum of three (3) years and made available to the Government upon request.

2.1.17.2 **Written Inspection Summary & Discrepancy Reporting:** Following each semi-annual inspection, the Contractor shall provide a written summary of the conditions found:

a. **Immediate Discrepancies:** Identify all safety or operational discrepancies requiring immediate repair or replacement in accordance with TO 35E1-2-13-1, Table 2.

b. **Future Budgeting:** Identify any foreseeable component wear or system issues that may require future Government budgeting.

c. **Itemized Cost Estimates:** Provide a detailed, itemized cost estimate (parts and labor) to repair or replace all discrepancies identified under Table 2.

The Contractor must have a minimum of three years' experience in inspecting and maintaining fire trainer systems or similar system. Prime Contractor must provide proof prior to contract award.
2.1.1.1 The Contractor must provide a certificate of compliance and include supporting documentation, i.e. resume, certifications, with their quote confirming they have met this requirement.

2.2 **Semi-Annual Inspections, Winterization, and De-Winterization:**

2.2.1 **Core Services:**

2.2.2 The Contractor must conduct semi-annual inspections of the AFTF, SFTF, and HMT, coordinating them directly with winterization and de-winterization activities. The Contractor must coordinate all scheduled inspections with the Minot AFB Fire Department POC designated by the Contracting Officer.

2.2.3 **Winterization**: The Contractor must perform winterization services between September 20th and September 29th. The Contractor shall contact the Contracting Officer and FD POC for coordination and scheduling.

2.2.4 **De-winterization:** The Contractor must perform de-winterization services between April 15th and May 1st. The Contractor shall contact the Contracting Officer and FD POC for coordination and scheduling.

2.2.5 **Compliance**: All inspections, testing, and preventative maintenance must strictly adhere to T.O 35E1-2-13-1, Table 1 WP 006, and Table 3 WP 007.

2.2.6 **Semi-Annual and Seasonal Reporting:**

The Contractor shall provide a detailed, written inspection and maintenance report to the FD POC and the CO within five (5) business days following the completion of any semi-annual inspection, winterization, or de-winterization event. The report must detail all work performed, conditions found, parts replaced, and the current operational status of the systems.

2.2.7 **Post-Repair Work Order Reporting:**

2.2.8 Upon completion of any authorized work order, emergency visit, or repair service, the Contractor shall submit a service ticket/report to the FD POC and the CO within three (3) business days of completion. This report must verify that the repaired systems are fully operational and meet all manufacturer specifications.

2.2.9 **Structural Integrity Inspection (5-Year):**

2.2.10 Requirement: In accordance with NFPA 1403, Chapter 7 (Current Edition) and TO 35E1-2-13-1, the structural integrity of the Structural Fire Training Facility (SFTF) must be certified, evaluated, and documented at least once every five years. The evaluation must be conducted by a Licensed Structural Engineer with live fire training structure experience or a qualified professional with a minimum of 10 years of structural evaluation experience.

2.2.11 **Schedule:** The next 5-year structural inspection is due in FY 2029. The Contractor shall perform this inspection once during the contract performance period during the option year corresponding to FY 2029, unless otherwise directed by the Contracting Officer.

2.3 **Scope of Inspection**: The Contractor shall provide all labor, materials, and equipment to evaluate concrete slabs, burn rooms, doors, window latches, fire panels, and thermal linings. The inspection must include removing and reinstalling representative sections of thermal lining to evaluate underlying conditions. A full written structural integrity report must be delivered to the CO and FD POC within 10 calendar days of inspection completion.

2.5 **General Maintenance/Repairs Work Order Procedures:**

The contractor shall be responsible for completing all work requested by work order from Fire Department. Work order services/repairs will be requested in writing. The contractor shall provide cost estimates to the CO prior to any repairs.

2.6.1 After any maintenance, adjustments, or repairs are accomplished due to modifications from the inspection, the fire trainer must operate as inspected / demonstrated by the initial performance test and the manufacturer's recommendations. All work will be approved by the Fire Chief, Deputy Chief or Assistant Chief of Minot AFB Fire Emergency Services.

2.7 **Telephone Technical Support:** The Contractor must provide telephone support to facilitate simple troubleshooting and operator maintenance. This support must be available Monday – Friday from 7:00 a.m. to 5:00 p.m. Central Time.

2.8 **Emergency Repair Visit**: The purpose of this visit is to bring the contractor on site to troubleshoot any issues that could not be repaired via telephone support. Within 48 hours of Contracting Officer's notification, the Contractor must perform an on-site visit to diagnose the system failure and bring equipment back to operational status. This emergency visit includes all travel, diagnostic labor, and the execution of incidental minor repairs that require no additional parts or equipment. If the system cannot be repaired during this initial visit, the Contractor shall secure the system and submit a formal repair estimate within 24 hours in accordance with Section 2.8.1 (Repair Services)

2.8.1 **Repair Services:** During the Semi-Annual Inspections or under an emergency site visit, the Contractor must identify and report any repairs required to keep the system operational within five business days after completion of the inspection. This report must contain the repair needed, the cost to repair the issue, including travel, labor, and parts and materials, and an estimated timeline for the repair. The Contracting Officer will review the report and authorize or defer the maintenance. If authorized by the Contracting Officer, the Contractor must coordinate the repair with the Minot AFB Fire Department and the Contracting Officer. If no repairs are needed at the Semi-Annual Inspection the report will be provided to the CO & Fire Department.

Services Summary: Required for service contracts over the simplified acquisition threshold, currently $350,000. A Services Summary is recommended for all performance-based contracts The Government has outlined the key service requirements that are essential to achieving our mission goals. These requirements are summarized in the Services Summary, which includes:

Performance objectives: These are the specific goals that the Contractor must meet to ensure successful mission outcomes.

Performance thresholds: These define the minimum acceptable levels of service for each requirement.

The Services Summary provides information on: What the Government expects from the Contractor in terms of performance and delivery How the Government will monitor and evaluate the Contractor's performance.

The Government will regularly inspect the Contractor's work to ensure that it meets the required standards. Each inspection will be rated as either "Acceptable" or "Unacceptable". At the end of each month, the Government will review all inspections and assign an overall rating based on the following five-tier system:

Exceptional: Performance meets contractual requirements and exceeds many to the Government's benefit.

Very Good: Performance meets contractual requirements and exceeds some to the Government's benefit.

Satisfactory: Performance meets contractual requirements. The Government will not rate the Contractor lower than Satisfactory if Contractor performance meets the requirements of the contract.

Marginal: Performance does not meet some contractual requirements.

Unsatisfactory: Performance does not meet most contractual requirements, and recovery is not likely within the allotted time.

The Government's rating official will use the monthly ratings to decide the Contractors annual rating.

The standards listed in the Services Summary Table do not override the overarching quality requirements under any Federal Acquisition Regulation, Defense Federal Acquisition Regulation Supplement, or Department of the Air Force Federal Acquisition Regulation Supplement clauses applied to this contract.

2.5.1 **Services Summary Table**

Performance Objectives	PWS Para	Performance Threshold	Remedy	Method of Assessment
Semi-Annual Maintenance & Winterization	2.2	Satisfactory: Performed within specified date windows. Marginal: Completed 1–5 business days late. Unsatisfactory: >5 business days late.	Re-perform or complete all tasks as rescheduled by the Contracting Officer.	100% Inspection / Surveillance Log
Inspection & Maintenance Quality	2.1.9 & 2.2.5	98% of inspection criteria met during original inspection. All checklists are compliant with TO 35E1-2-13-1.	Re-perform failed tasks to 100% compliance at no additional cost to the Government.	Periodic Surveillance
Emergency Repair Response	2.8	Contractor arrives on-site within 48 hours of CO notification.	Document response failure; submit repair findings to CO immediately upon arrival.	Periodic Surveillance / User Feedback

			Issue CAR if recurring.	
Telephone Technical Support	2.7	Available Mon–Fri, 0700–1700 CST. 100% of telephone inquiries were returned within 4 hours.	Re-perform troubleshooting; document delay in official contract surveillance file.	Customer Complaint / Random Sampling
Timely & Compliant Report Delivery	2.1.18 & 2.2.6 & 2.2.8	Satisfactory: 100% of reports submitted within 5 business days (3 days for repairs). Marginal: Reports 1–5 days late. Unsatisfactory: >5 days late or missing required test data.	Contractor shall submit missing data within 24 hours. Invoices will be withheld from payment until compliant reports are accepted by the CO/FD POC.	100% Surveillance Log

GENERAL REQUIREMENTS:

3.1 **Contractor Personnel:**

3.1.1 The Contractor must provide the Government with a point of contact to act as the Contract Manager within 5 Calander days after contract award. The Contractor must supply an alternate point of contact to the Government if the primary point of contact becomes unavailable. The Contract Manager must have full authority to act on the Contractor's behalf on all matters relating to daily operation during this requirement. The Contract Manager must be available during normal work hours listed under "Hours of Operation".

3.1.2 Contractor personnel must present a professional appearance properly to the duties performed. Contractor personnel must be easily recognizable while performing contract work on Minot AFB. The Contractor may do this through the wearing of nametags, distinctive clothing, overcoats, or hats bearing the company name or logo. The coloring or design of the items selected should allow easy identification.

3.1.3 When attending meetings, answering government telephones, or working in other situations where the Contractor's status is not obvious to third parties, the Contractor's employees and subcontractors must identify themselves as Contractors.

3.1.4 The Government may restrict base access to anyone identified as a potential threat to the health, safety, security, general well-being, or operational mission of the installation or its population.

3.1.4.1 The Contractor must not allow any person identified above to continue working on this requirement.

3.2 **Training:**

3.2.1 The Contractor must provide training to the Fire Department Personnel on any equipment installed through repair services.

3.3 **Hours of Operation:**

3.3.1 **Work Hours:**

3.3.1.1 Normal work hours are 7:30 a.m. to 4:30 p.m. CST, Monday through Friday, excluding Federal Holidays. If the Contractor would like to work outside normal work hours, the Contractor must request approval at least five days in advance. The Contractor must make all requests to the Government in writing. The CO will make the final determination and will let the Contractor know of the decision. The Government reserves the right to deny work outside normal hours. The Contractor must wait until the Government approves the request of a change to the work schedule prior to conducting the change. The work schedule change request will be at no added cost to the Government.

3.3.2 **Federal Holidays:**

3.3.2.1 The Government recognizes all Federal Holidays. The Contractor is not required to perform services on the following Federal Holidays. See https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/ for specific dates and more information.

3.3.2.1. **Current Federal Holidays:** New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veteran's Day, Thanksgiving Day, Christmas Day

3.4 **Base Closure:**

3.4.1 The Government may stop or delay work at Minot AFB due to weather, exercises, or mission necessities. This requirement is not considered mission essential. The Contractor is not expected to continue working during weather emergencies or national emergencies. The Contractor must listen to local radio, television, or other alerting systems to learn the condition of the base. When applicable the FD POC will let the Contractor know of the delay.

3.4.1.1 Note: US Highway 83 between the town of Minot and Minot AFB is prone to road closures during inclement weather.

3.4.2 Work scheduled but not carried out because of base closure due to weather, exercises, or mission necessities must begin as soon as possible after the base reopens, unless otherwise directed by the CO.

3.4.2.1 If weather, exercises, or mission necessities delay Contractor work, the Contractor must let the CO, CA, and FD POC know of the consequence of the delay as soon as possible.

3.5 **Tobacco Use:**

3.5.1 The government prohibits tobacco use on its installations, except in designated areas. Tobacco use includes cigarettes, cigars, electronic cigarettes, and smokeless products. The government will identify designated tobacco areas to the contractor after the contract award. Tobacco use is also prohibited in government vehicles.

3.5.2 Medical Treatment Facility campuses are tobacco free. Medical Treatment Facility campuses consist of the area surrounding the clinic or hospital, including the parking lot and other outdoor areas surrounding the Medical Treatment Facility.

3.6 **Fire and Emergency Reporting:**

3.6.1 For emergencies on Minot AFB property from an official government phone or from military family housing – DIAL 911. If calling from a cell phone, you must – DIAL (701) 727-1911. Calling 911 from a mobile phone will connect the Contractor to the nearest civilian agency which may delay the response.

3.7 **Site Maintenance:**

3.7.1 The Contractor must keep a safe and clean work site during this requirement. This includes:

3.7.1.1 Properly disposing of all trash and waste per local laws and regulations.

3.7.1.1.1 Placing all trash and waste in a suitable container while waiting for disposal.

3.7.1.2 Safely storing all materials, tools, and equipment not in use.

3.7.1.3 Properly collecting any waste scattered by natural or man-made events unless the waste moves into an area which the Contractor may not enter.

3.7.1.3.1 If the Contractor's waste enters a restricted area, the Contractor must notify the Government as soon as possible.

3.7.1.4 Performing a final cleanup of any remaining material, tools, equipment, and waste to return the work site to its original state.

3.7.2 The CO may charge the Contractor for the cost of any cleanup completed by the Government, due to failure or neglect on the Contractor's part. To do this, the Government may establish a debt against the contract for the cost of the cleanup.

3.8 **Damage to Government Property:**

3.8.1 The Contractor is required to notify the Government immediately if they cause damage to any government property. The Contractor must provide a report detailing the damage, the known cause, and a plan for repair. If an investigation determines that the Contractor is responsible for the damage, the Contractor must repair or replace the damaged items at their own expense, restoring them to their original condition. The Contractor is financially responsible for any damage they cause to government property. If the Government completes repairs due to the Contractor's failure to do so, the Contractor will be charged for the costs incurred. The Government may also create a debt against the contract to cover the cost of these repairs.

3.9 **Base Access:**

3.9.1 **Escorted:** When requesting access to Minot AFB, the Contractor must have a valid state or government picture identification card. Individuals presenting identification cards from a state that is non-compliant with the REAL ID Act will require more documentation to gain base access. More documentation includes a valid U.S. or foreign government issued passport, an employment authorization document that has a photograph, or identification cards issued by federal, state, or local government agencies that include a photo and biographic information. The Contractor can find more information, including a full list of REAL ID Act compliant states at https://www.dhs.gov/current-status-states-territories.

3.9.2 Personnel requesting vehicle access to Minot AFB must supply a valid REAL ID Act compliant driver's license, current vehicle registration, and insurance.

3.9.2.1 If the Contractor is unable to access the base due to Security Forces requirements, improper passes or pass requests, or gate closures, the Contractor must inform the CO and FD POC as soon as possible. This delay will not infer any additional cost to the government.

3.9.2.2 Denial of access to Minot AFB due to failure to meet the requirements listed under “Base Access” or any failure of a Contractor or Contractor’s employee to pass any required background check is not a reason for an excusable delay in the performance of this requirement. This delay will not infer any additional cost to the government.

3.10 **Physical Security:**

3.10.1 Safeguarding Government Property: The Contractor must safeguard all provided government property and controlled forms. At the end of each work period, the Contractor must secure all government facilities, equipment, and materials under the Contractor’s control.

3.10.2 Reporting Requirements: The Contractor is required to report any information or situation that they believe could potentially harm the safety of Department of Defense (DoD) personnel, civilian employees, contractors, or resources. This includes reporting any potential threats to DoD classified or sensitive information. The Contractor must make these reports to Security Forces or Air Force Office of Special Investigation. Reports may be made through Air Force Eagle Eyes https://www.osi.af.mil/eagleeyes/

3.10.2.1 The Contractor must ensure that all their employees and subcontractors are aware of this reporting requirement before they begin work on the base for the first time.

3.10.3 Weapons, Firearms, and Ammunition: The Government prohibits Contractors from possessing weapons, firearms, or ammunition on their person or in their vehicles while on Minot AFB.

3.11 **Motor Vehicles:**

3.12 Traffic Laws: The Contractor must follow all base traffic regulations. The Contractor must not use hand-held cellular telephones, Global Positioning System, and other portable electronics while driving on Minot AFB properties.

3.13 **Site Restrictions:**

3.13.1 The Contractor does not require access to secure work areas. The Government will let the Contractor know what areas within the facility have access restrictions upon the contract award.

3.13.1.1 The Government will supply escorts, as needed, for work in secure areas. When working in any area identified as requiring an escort, the Contractor must follow all escort guidance.

3.13.1.2 Contractor personnel must leave all restricted equipment in Contractor's vehicle or place the equipment in a locker where provided. The Government may confiscate any equipment violating this requirement.

3.13.1.3 Due to the missions of the 5th Bomb Wing and the 91st Missile Wing, the Government may temporarily or permanently suspend the use of mobile electronic devices at any location. When possible, the Government will let the Contractor know of the suspension in advance.

4 GOVERNMENT PROVIDED FACILITIES, EQUIPMENT, AND MATERIALS:

4.1 Government Furnished Property:

4.1.1 Contractors may use utilities as available at the worksite. The contractor must confirm what utilities are available at each work site prior to the start of work. The contractor must secure any utility used after completing the maintenance or repair.

5 QUALITY ASSURANCE AND CONTROL PROGRAMS (QA/QC):

5.1 Contractor Quality:

5.1.1 The Contractor must manage the quality of Contractor services tendered under this contract.

5.1.2 The Contractor must only tender for acceptance those items that conform to the requirements shown in this performance work statement.

5.1.3 For recurring services shown in this performance work statement, the Government defines “tendered for acceptance” to identify:

5.1.3.1 The scheduled time of completion for any recuring services plus sufficient time for the Contractor to complete internal quality assurance and corrective actions, or

5.1.3.2 Any time the Contractor has marked the services as complete through internal processes, i.e., inspection checklist or certificate of completion.

5.1.3.3 **Acceptance of Services:** Performance of inspections, maintenance, and repairs shall not be considered complete or tendered for government acceptance until the corresponding written report, including all required test results and certifications, has been submitted to and accepted by the Contracting Officer and Fire Department POC.

5.1.4 Continuously occurring services must always be within the standards.

5.1.5 The Contractor must develop and maintain a quality control program, ensuring the services follow this requirement and commonly accepted commercial practices.

5.1.6 The Contractor must develop and submit a Quality Control Plan for all services provided under this performance work statement.

5.1.6.1 The Quality Control Plan must remain in effect during the term of the contract, including any exercised option periods.

5.1.6.2 The Contractor must supply the Quality Control Plan to the Government for review within thirty days after the contract award. The Contractor must supply an updated plan within fifteen days after making any changes to the Quality Control Plan. The Government must review the Contractor plan prior to the Contractor implementing any changes.

5.1.6.3 The Contractor’s Quality Control Plan must specifically address Contractor strategy to supply quality workmanship and continual process improvement for preventing and correcting deficiencies as needed. The Government may request Contractor quality control records at any time. If requested, the Contractor must supply these records to the Government within three working days.

5.1.7 NOTE: The purpose of this deliverable item is to provide the Government with an understanding of the Contractor’s plan.

5.1.8 NOTE: The Government will not approve or disapprove of this plan; however, the Government may supply feedback and request further clarification.

5.1.9 **Government Assurance:** The Government shall inspect and evaluate the Contractor’s performance to ensure services are received in accordance with the requirements set forth in this contract. The Government POC and or the Contracting Officer shall inspect by watching actual performance, investigating and verifying all customer complaints, conferring with the customers,

and ensuring that the Contractor's performance meets the standards contained in the Performance Work Statement (PWS). Results of the surveillance then become the official Air Force record of the Contractor's performance, if deemed necessary to utilize. When a performance threshold has not been met or Contractor performance has not been accomplished, the Contracting Officer working with the FD POC will initiate and provide the Contractor with various ways to remedy the situation such as re-performance, issuing a Customer Complaint Record (CCR). Government Remedies. The contracting officer shall follow the requirements of RFO 52.212-4, Terms and Conditions- Commercial Products and Commercial Services, for Contractor's failure to correct nonconforming services.

5.1.9.1 The Government reserves the right to inspect or test any supplies or services that the Contractor has tendered for acceptance. The Government may ensure conformance with the requirements, check required reports, investigate customer complaints, confer with facility managers, and review the task or its results to decide whether performance meets all standards. Results of the surveillance then become the official Air Force record of Contractor performance.

5.1.9.2 If the Contractor does not meet a performance threshold, the Government will notify the Contractor. The Contractor must take the proper action to bring the performance back into standard.

5.1.10 The Government may request a contract performance meeting if the Contractor does not meet any two requirements in a single month, if the Contractor does not meet the same requirement two or more months in a row, or if the Government notices quality concerns or trends that may affect overall contract performance.

5.2 **Performance Management Team:**

5.2.1 A Performance Management Team will be created to review contract performance and allow the Contractor and Government to discuss ways to improve the requirement, quality, or objectives. The team will consist of members of the Government including the CO, CA, FD POC and QA representatives, functional experts, and similar members of the Contractor's team. The team will establish how often meetings are needed based on contract complexity. Either the Government or the Contractor may request a Performance Management Team meeting for urgent situations. If the CO deems it necessary, written minutes of any such meetings must be recorded by the CA and signed by the CO. If the Contractor does not concur with any portion of the minutes, such nonoccurrence must be provided in writing to the Contracting Officer within 10 calendar days following receipt of the minutes.

6 **ENVIRONMENTAL:**

6.1 **Notification of Environmental Spills:**

6.1.1 The Contractor must report any spills at once to the Fire Department. If dialing from an official government phone or from military family housing – DIAL 911. If calling from a cell

phone, you must – DIAL (701) 727-1911. If the Contractor spills or releases any substance listed in 40 CFR 302, Designation, Reportable Quantities, and Notification, the Contractor must report the type of material and quantity spilled. The Contractor is liable for the spill or release of such substances and must clean up all spills of less than twenty-five gallons. The Contractor is liable for the cleanup and cost of any spill greater than twenty-five gallons that occurs through Contractor negligence.

6.2 **Laser Safety:**

6.2.1 The Contractor must inform the CO at least 30 days in advance of performing operations using military specific lasers, or Class 3B or 4 FDA-Compliant Laser systems that impact AF property or personnel. The CO will notify the Installation Laser Safety Officer for approval.

6.3 **Hazardous Materials:**

6.3.1 The Contractor must have Safety Data Sheets on all the Contractor's hazardous materials. The Contractor must supply a list of all hazardous materials to the CO, CA, and the FD POC at least 15 calendar days prior to bringing the hazardous material on base. The Government will distribute the list to all proper agencies for approval. The list must have the following information: the name, an estimated quantity, and the expected storage location of each hazardous material. The list must also include a copy of the Safety Data Sheet for each hazardous material. The Contractor must not bring any hazardous materials on base without written approval.

6.3.2 Compliance with Environmental Laws and Regulations: Handle all hazardous waste/material in accordance with all Federal and State hazardous waste and toxic substances control regulations. Any hazardous waste/material used by the Contractor must contain a National Stock Number (NSN) with Product Name and current Safety Data Sheet (SDS). The SDS must match the manufacturer and date of manufacture. This information shall be provided to the Contracting Officer which will provide it to the 5 CES Environmental Management (CEIE) for analyzing chemicals. The Contractor shall also provide to the CO/CEIE the type and quantity of chemicals brought, used and stored each month and the location of chemical storage. The Contractor shall provide the requested to the Contracting Officer for APPROVAL (not analysis) no later than 15 calendar days before material is to be brought on site. Generation of any hazardous waste must be characterized either via official process knowledge or analytical results and submitted to 5 CES/CEIE digitally. Only 5 CES/CEIE Hazardous Waste Program Manager can sign hazardous waste manifests on behalf of the Government Generator. Comply with all environmental regulations. The contractor shall provide a list of all materials prior to project start for any chemical/hazardous material products including but not limited to Caulking, solvents, fuels, paints, etc. The list includes the following but not limited to: Material Type, Product Name, SDS, Container Type and Size, and if it is an Aerosol.